

Court No. - 3

Case :- WRIT - C No. - 32960 of 2023

Petitioner :- Aadil

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Nayab Ahmad Khan

Counsel for Respondent :- C.S.C.,Chetan Chatterjee

Hon'ble Siddhartha Varma,J.

Hon'ble Manoj Bajaj,J.

This writ petition has been filed challenging the impugned notice dated 4.8.2023.

Learned counsel for petitioner disputes the bill which demands a sum of Rs.2,71,153/- by the Electricity Department towards actual consumption.

Sri Chetan Chatterjee, learned counsel for Electricity Department submits that if the petitioner is aggrieved by the bill/impugned notice dated 4.8.2023 for the actual consumption then the petitioner had an efficacious alternative remedy of filing an application before the Executive Engineer under Clause 6.5 of U.P. Electricity Supply Code, 2005.

Under such circumstances, without going into further merits of the case, we direct that if the petitioner files an application under Clause 6.5 of U.P. Electricity Supply Code, 2005 within a period of one month from the presentation of certified copy of this order then the same shall be considered and decided within one month thereafter.

For a period of two months or till the decision of the application, whichever is earlier, no coercive action shall be taken against the petitioner.

With these observations, the writ petition is disposed of.

Order Date :- 31.10.2023

P.S.Parihar